

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 4298 By: Pae of the House
3
and
4
Reinhardt of the Senate
5
6

7 An Act relating to children; amending 10 O.S. 2021,
8 Section 404, which relates to the Oklahoma Child Care
9 Facilities Licensing Act; permitting electronic
10 notice; and providing an effective date.

11 AUTHOR: Remove as principal House author Pae and substitute as
12 principal House author Schreiber. Retain Pae as House
coauthor

13 AUTHOR: Remove as principal Senate author Reinhardt and substitute
14 as principal Senate author Rosino. Retain Reinhardt as
Senate coauthor

15 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
16 entire bill and insert

17 "An Act relating to child care; amending 10 O.S.
18 2021, Section 405.4, which relates to master
19 teachers; directing establishment of certain master
20 teacher ratios; authorizing child care facilities to
21 charge certain fees subject to specified conditions;
requiring the Department of Human Services to seek
certain federal approval; providing for codification;
providing an effective date; and declaring an
emergency.

22
23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:
24

1 SECTION 1. AMENDATORY 10 O.S. 2021, Section 405.4, is
2 amended to read as follows:

3 Section 405.4. A. Any person with a bachelor's degree or
4 postgraduate degree shall be considered as having met the
5 educational requirements for a director of a full-time child care
6 center required by the Department of Human Services. Nothing in
7 this section shall be construed as to affect annual continuing
8 education requirements. The director of a child care center may
9 also qualify as a master teacher for children of all ages.

10 B. Any person replacing a master teacher at a child care center
11 shall be granted a one-year probationary period to fulfill the
12 educational qualifications required by the Department for a master
13 teacher. The Department may extend the probationary period an
14 additional year as long as the person is actively pursuing that
15 goal.

16 C. Not later than the effective date of this act, the Director
17 of Human Services shall establish master teacher ratios for two-,
18 three-, four-, and five-star child care facilities that are the most
19 permissive ratios possible without harming the safety of children or
20 the quality of care provided, as determined by the Director.

21 D. Licensed child care facilities opened or expanded before
22 November 1, 2016, shall have thirty-five (35) square feet of floor
23 area per infant in rooms occupied only by infants. New construction
24 and existing space not previously licensed for child care after

1 November 1, 2016, shall have forty (40) square feet of floor area
2 per infant in rooms occupied only by infants.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 410.2 of Title 10, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Subject to federal approval as described in subsection B of
7 this section, a licensed child care facility that participates in
8 the child care subsidy program may charge a family receiving subsidy
9 assistance an additional differential fee above the subsidy
10 reimbursement rate established by the Department of Human Services,
11 provided the total amount paid by the family for the required
12 copayment and the additional differential fee does not exceed ten
13 percent (10%) of household income. The Department shall not be
14 responsible for payment of any amount charged above the applicable
15 subsidy reimbursement rate.

16 B. The Department shall seek any approval necessary from the
17 federal Administration for Children and Families to implement the
18 provisions of this section.

19 SECTION 3. This act shall become effective July 1, 2026.

20 SECTION 4. It being immediately necessary for the preservation
21 of the public peace, health or safety, an emergency is hereby
22 declared to exist, by reason whereof this act shall take effect and
23 be in full force from and after its passage and approval."
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1 Passed the Senate the 4th day of May, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 4298

By: Pae of the House

3 and

4 Reinhardt of the Senate

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6 An Act relating to children; amending 10 O.S. 2021,
7 Section 404, which relates to the Oklahoma Child Care
8 Facilities Licensing Act; permitting electronic
9 notice; and providing an effective date.

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 5. AMENDATORY 10 O.S. 2021, Section 404, is
12 amended to read as follows:

13 Section 404. A. 1. The Department of Human Services, in
14 consultation with the Oklahoma Commission on Children and Youth,
15 shall appoint advisory committees of representatives of child care
16 facilities and others to recommend minimum requirements and
17 desirable standards for promulgation by the Department.

18 2. Committee members shall be appointed for a three-year term,
19 with a two-consecutive-term limit. The committees shall include
20 representation for all categories of facilities licensed by the
21 Department and shall be comprised as follows:

22 a. the Residential Children's Services subcommittee shall
23 include at a minimum:
24

- (1) a representative of a statewide organization representing children in care arrangements outside their own home,
- (2) a representative of a statewide organization providing residential services to youth in state custody,
- (3) a recipient or former recipient of youth services for children in state custody,
- (4) a representative of a statewide organization promoting adoption services,
- (5) a parent or guardian providing foster care to a child or children in state custody,
- (6) a representative from a nonpublic, long-term residential care facility for children in state custody,
- (7) a representative from an organization promoting the interests of Native American children in state custody,
- (8) a provider of medical services for children,
- (9) a practicing behavioral health services provider,
- (10) a representative from an agency providing child-placing services, and

- 1 (11) other appropriate representatives at the
2 discretion of the Department of Human Services
3 and Commission on Children and Youth,
- 4 b. the Child Care Centers subcommittee shall include at a
5 minimum:
- 6 (1) a representative of a statewide organization
7 advocating for children in care arrangements
8 outside their own home,
- 9 (2) a representative of a statewide organization
10 conducting programs for school-age children,
- 11 (3) a parent or guardian with a child attending a
12 licensed child care facility,
- 13 (4) a representative of a licensed child care
14 facility in a rural area,
- 15 (5) a representative of a statewide organization
16 advocating for licensed child care facilities
17 owned or operated by Native Americans,
- 18 (6) a representative of a licensed child care
19 facility in an urban/suburban area,
- 20 (7) a representative of a statewide organization
21 advocating for programs provided under the Head
22 Start program,
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1 (8) a representative with knowledge of child care
2 programs offered by career technology center in
3 this state,

4 (9) a representative of a statewide organization
5 advocating for early childhood education
6 programs,

7 (10) a representative of a statewide organization
8 providing resources and referrals to child care
9 facilities,

10 (11) a provider of medical services for children, and

11 (12) other appropriate representatives at the
12 discretion of the Department of Human Services
13 and Commission on Children and Youth,

14 c. the Child Care Homes subcommittee shall include at a
15 minimum:

16 (1) a representative of a statewide organization
17 advocating for children in care arrangements
18 outside their own home,

19 (2) a parent or guardian with a child receiving care
20 at a licensed child care home,

21 (3) a representative of a licensed child care home in
22 a rural area,

- (4) a representative of a statewide organization advocating for licensed child care facilities owned or operated by Native Americans,
- (5) a representative of a licensed child care home in an urban/suburban area,
- (6) a representative of a statewide organization advocating for early childhood education programs,
- (7) a representative of a statewide organization providing resources and referrals to child care facilities,
- (8) a provider of medical services for children, and
- (9) other appropriate representatives at the discretion of the Department of Human Services and Commission on Children and Youth, and

d. the Quality Rating and Improvement System subcommittee shall include representatives of child care centers and child care homes currently licensed by the State and other members as determined by the Department of Human Services and the Commission on Children and Youth.

3. The Department shall create a Child Care Facility Peer Review Board whose purpose shall be to participate in the Department's grievance process. A majority of the Board shall be

1 representatives of child care facilities. The Department shall
2 promulgate rules specifying the duties of the Child Care Facility
3 Peer Review Board in the grievance process.

4 4. The advisory committee shall designate two people to serve
5 on the Department's Stars Administrative Review Panel. At least one
6 designee shall be the owner or operator of a licensed child care
7 center.

8 B. Child care facilities shall not allow children to be left
9 alone in the care of any person under eighteen (18) years of age
10 without supervision or sixteen (16) years of age with supervision as
11 delineated by the Department's rules. Child care centers and family
12 child care homes shall not:

13 1. Use soft or loose bedding, including, but not limited to,
14 blankets, in sleeping equipment or in sleeping areas used only for
15 infants;

16 2. Allow toys or educational devices in sleeping equipment or
17 in a sleeping area used only for infants; or

18 3. Place a child in sleeping equipment or in a sleeping area
19 which has not been previously approved for use as such by the
20 Department.

21 C. The Department shall promulgate rules establishing minimum
22 requirements and desirable standards as may be deemed necessary or
23 advisable to carry out the provisions of the Oklahoma Child Care
24 Facilities Licensing Act.

1 D. Such rules shall not be promulgated until after consultation
2 with the State Department of Health, the State Department of
3 Education, the Oklahoma State Bureau of Investigation, the State
4 Fire Marshal, the Commission on Children and Youth, the Oklahoma
5 Department of Mental Health and Substance Abuse Services and any
6 other agency deemed necessary by the Department. Not less than
7 sixty (60) days' notice, electronically, or as requested by regular
8 mail, shall be given to all current licensees before any changes are
9 made in such rules.

10 E. In order to improve the standards of child care, the
11 Department shall advise and cooperate with licensees, the governing
12 bodies and staff of licensed child care facilities and assist the
13 staff through advice of progressive methods and procedures, and
14 suggestions for the improvement of services.

15 F. The Department may participate in federal programs for child
16 care services, and enter into agreements or plans on behalf of the
17 state for that purpose, in accordance with federal laws and
18 regulations.

19 SECTION 6. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 18th day of February,
2 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 Presiding Officer of the Senate